

**SOLE SOURCE JUSTIFICATION (SSJ)
FOR ACTIONS ≤ SIMPLIFIED ACQUISITION THRESHOLD (SAT)**

**Negation of Improvised Non-State Joint Aerial (NINJA) Field Support
Engineering (FSR) Services**

1) Agency, Contracting Activity, and Purpose:

The Navy Contracting Office (NCO), Naval Supply Systems Command (NAVSUP) Fleet Logistics Center Sigonella (FLCSI), Site Djibouti – Determination of only one source reasonably available in accordance with (IAW) FAR 13.106-1(b).

Government Technical Point of Contact (GTPOC):

Name: CPT C. Giles Flamard

[REDACTED]
[REDACTED]
[REDACTED]

Contracting Points of Contact:

Name: LT Tom Ruane

Contract Specialist

[REDACTED]
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Name: MAJ Daniel Leininger

Contract Specialist

[REDACTED]
[REDACTED]
[REDACTED]

Name: SSG Ravonya Rowell

Contract Specialist

[REDACTED]
[REDACTED]
[REDACTED]

Name: Tedra Thompson

Supervisory Contracting Officer

[REDACTED]
[REDACTED]

2) Description of the Action Being Approved:

Approval is sought for the acquisition of a Firm Fixed Price (FFP) Contract award using sole source solicitation (FAR 13) procedures for the acquisition of Field Support Representative (FSR) services for the Counter Small Unmanned Aircraft Systems (C-

sUAS) NINJA systems within the Combined Joint Task Force (CJTF) Horn of Africa (HOA) (CJTF-HOA) Area of Responsibility (AOR).

The proposed action is for a period of performance beginning 01 May 2025 through 30 April 2026. Using other than full and open competition will allow the continuation of FSR services supporting the CTJF-HOA NINJA systems.

3) Description of Services Required to Meet Agency’s Needs:

The scope of this requirement encompasses the full range of field support engineering services to achieve the objectives of this requirement. This includes services such as initial system installation, integration, validation, maintenance, troubleshooting, operational guidance, and operator training. These services are required for the seven (7) NINJA systems currently within the CJTF-HOA AOR; however, the scope of work includes an anticipated fluctuation in the number of systems deployed.

Period of Performance

Period	Period of Performance	Estimated Value
Base	01 May 2025 – 30 April 2026	

4) Authority Permitting Other Than Full and Open Competition:

FAR 13.106-1(b)(1)(i) – Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the Contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

5) Rationale Justifying Use of Cited Authority:

Historically, these services have been provided to CJTF-HOA via contract FA8750-19-C-0040. This Contract was awarded by the United States Air Force (USAF) Air Force Research Lab (AFRL) on 02 May 2019 to Black River System Company (BRSC), a Small Business. Further, this Contract was awarded under Phase 3 of the Small Business Innovation Research (SBIR) Program. Of the multiple services provided under this Contract (e.g., research, system analysis, simulation and modeling, technique development, hardware and software rapid prototyping, integration, test, demonstration), a requirement to provide FSR services was included. Service under contract FA8750-19-C-0040 ended and a Sole Source GSA contract order N68171-24-F-4016 to provide NINJA FSR services was awarded to OWT Global LLC (OWT) on 27 June 2024 for the period of 01 July 2024 to 30 April 2025, as OWT was found to be the exclusive vendor authorized to perform the work. The current requirement is for follow-on NINJA FSR services for the period 01 May 2025 to 30 April 2026. Market research revealed that BRSC continues to retain an exclusive partnership with OWT, which explicitly provides the FSR services that are required for this procurement.

As discussed, USAF Contract FA8750-19-C-0040 was awarded under Phase 3 of the SBIR Program, which further indicated that BRSC was the entity entitled to the development of the NINJA System. Under the SBIR Program, entities conduct feasibility studies and research and development efforts for proposed solutions (Phase 1), develop prototypes and testing procedures (Phase 2), and continue development and pursue commercialization (Phase 3). Within this process, the entity which is conducting the work will typically retain rights to any follow-on work which is related to the requirement. In this case, the NINJA System was developed by BRSC, and execution of Phase 3 was made through USAF Contract FA8750-19-C-0040.

In an effort to verify that OWT continues to be the exclusive vendor authorized to perform this requirement, the Contracting Office communicated with BRSC as the OEM to determine the market availability of engineering support of the NINJA System. BRSC provided information which indicated that OWT Global was the only company which was trained by the OEM to provide FSR services for the NINJA System. This correspondence can be found in the Market Research Memorandum.

Finally, the Contract Specialist reviewed multiple sources via internet search to determine market capability for these services and the NINJA System. The findings were commensurate with the correspondence provided by BRSC, indicating that BRSC was the OEM and sole-provider of the NINJA System, and that OWT Global was their sole partner trained to provide the full range of FSR services. Further, several Sole Source notices were found on SAM.gov for sole source awards to BRSC and OWT for NINJA systems and services (see Market Research Memorandum), which further evidences this justification.

6) Description of Efforts Made to Solicit Offers from as Many Offerors as Practical:

As described in the Market Research Memorandum, a Sources Sought request was sent to 162 vendors via GSA eBuy. Only the current vendor responded indicating an ability to perform the requirement. Attempts were made to contact three vendors directly (as a result on online research), and only one response was received indicating no interest in the requirement. Consultation with and queries to other acquisition personnel also yielded no further knowledge of other potential sources.. Three separate sole source notices for sole source award to BRSC/OWT were found on SAM.gov for NINJA systems and services.. The results of this Market Research indicate that OWT is the only source capable of meeting the Government's requirements.

7) Price Fair and Reasonableness:

Price Fair and Reasonableness will be determined prior to execution of any contractual action IAW FAR 13.106-3(a).

8) Description of Market Research Conducted:

IAW FAR 10.002(b)(2), the following techniques were utilized in conducting Market Research:

- Contacting knowledgeable individuals in Government and industry regarding market

- capabilities to meet requirements. [FAR 10.002(b)(2)(i)]
- Reviewing the results of recent market research undertaken to meet similar or identical requirements. [FAR 10.002(b)(2)(ii)]
- Querying the Government-wide database of Contracts and other procurement instruments intended for use by multiple agencies available at <https://www.contractdirectory.gov/contractdirectory/> and other Government and commercial databases that provide information relevant to agency acquisitions. [FAR 10.002(b)(2)(iv)]
- Participating in interactive, on-line communication among industry, acquisition personnel, and customers. [FAR 10.002(b)(2)(v)]
- Obtaining source lists of similar items from other contracting activities or agencies, trade associations, or other sources. [FAR 10.002(b)(2)(vi)]
- Reviewing catalogs and other generally available product literature published by manufacturers, distributors, and dealers or available on-line. [FAR 10.002(b)(2)(vii)]

In addition to these, the Government reviewed the capability of OWT Global, a Small Business, and found that they are the only capable source available to meet the Government's requirement.

Finally, Market Research indicates that this requirement is commercial and meets the definition stated in FAR Subpart 2.1. As such, this procurement will leverage the procedures described in FAR Subpart 12.1 for the Acquisition of Commercial Products and Commercial Services.

9) Other Facts Supporting the Use of Full and Open Competition:

Not applicable.

10) List of Sources That Expressed Interest in the Acquisition:

Not Applicable.

11) Provide a statement of actions that will be taken to remove or overcome any barriers to competition prior to any future procurements for this Supply or Service:

For future requirements similar in nature, the Government will continue to explore the capability of industry; however, certain limitations exist pertaining to OEM rights, which were provided, in part, through the SBIR Program. It is anticipated that this may evolve in future requirements, as the intent of the SBIR Program is to develop technology and capabilities so that they achieve commercialization, further improving competition. Additionally, as the Counter Small Unmanned Aircraft Systems (C-sUAS) capability continues to evolve, so will competitors to the NINJA system, further improving the competitive marketplace and removing barriers to competition.

12) Certifications and Approval:

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition documents are complete and accurate to the best of my knowledge and belief.

Technical Cognizance Branch Head or Above:

Name: CPT C. Giles Flamard

[Redacted]

Signature:

[Redacted]

Legal Sufficiency Review:

I have determined this justification is legally sufficient.

Name: Lana Obert

Title: Counsel

[Redacted]

Signature:

[Redacted]

Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Name: Tedra Thompson

Title: Supervisory Contracting Officer

[Redacted]

Signature:

[Redacted]
